

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ISMAIL ABRAHAM,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE ALEX
VIERA, Tax Reg. No. 945080, and NYPD POLICE
OFFICERS JOHN and JANE DOES NUMBERS ONE
THROUGH TEN,Defendants.
----- X

SUMMONS

Index No.:

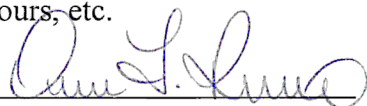
The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 6, 2023

Yours, etc.

Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New
York 10007NYPD DETECTIVE ALEX VIERA, 77th Precinct, 127 Utica Avenue, Brooklyn, New
York 11213

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, ISMAIL ABRAHAM, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the
United States Constitution. On or about January 30, 2022, while present within the 77th Precinct
located at 127 Utica Avenue, County of Kings, State of New York, was subject to unlawful
seizure and grossly excessive use of force by the defendant officers. In doing so, defendant
officers caused serious physical and emotional injuries to Plaintiff. Plaintiff was deprived of his
constitutional, common law and statutory rights when the individual defendants unlawfully
subjected him to grossly excessive force in violation of the Fourth, Fifth and Fourteenth
Amendments to the United States Constitution.

PARTIES

2. Plaintiff, ISMAIL ABRAHAM, is a resident of the State of New York.

3. NYPD DETECTIVE ALEX VIERA, Tax Reg. No. 945080, is and was at all
times relevant herein an Officer with the New York City Police Department.

4. NYPD DETECTIVE ALEX VIERA, Tax Reg. No. 945080, is being sued in
his individual and official capacity.

5. Currently and at all times relevant herein, NYPD DETECTIVE ALEX
VIERA, Tax Reg. No. 945080, was assigned to the 77th Police Precinct of the NYPD.

6. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR § 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On or about January 30, 2022, Plaintiff was subjected to an detention and arrest, and transported to the 77th Precinct, located at 127 Utica Avenue, Brooklyn, New York 11213.

12. At the 77th Precinct, Plaintiff was taken to an interrogation room and subjected to questioning by NYPD officers, including the individual defendant officers named herein.

13. Plaintiff declined to answer questions, in accordance with his 5th Amendment rights as secured by the seminal case of *Miranda v. Arizona*, 384 U.S. 436 (1966), and was thereafter removed from the interrogation room.

14. Defendant officer, NYPD DETECTIVE ALEX VIERA (“Detective Viera”), personally escorted Plaintiff from the interrogation room, and began forcefully squeezing Plaintiff’s arm causing pain.

15. Detective Viera then asked Plaintiff why he had done that, and continued to inquire why Plaintiff had declined to answer questions during the interrogation.

16. Plaintiff explained that he did not wish to speak without an attorney, in furtherance of his constitutional rights, at which point Detective Viera became enraged.

17. Detective Viera then grabbed Plaintiff, while restrained in handcuffs, and slammed his head into a large metal locker, causing immediate pain and substantial injury.

18. Plaintiff was caused to remain lacerated, bloodied, and wounded for an unreasonable period of time while the defendant officers spoke amongst themselves.

19. Finally, Plaintiff was transported to Interfaith Hospital, where he was examined and treated.

20. Plaintiff would sustain a severe laceration to the right cheek requiring eight (8) stitches, and which would result in a permanent, visible, disfiguring scar to his face.

21. Plaintiff suffered, and continues to suffer from severe headaches as a result of the trauma to his head by Detective Viera's attack.

22. At no time relevant herein did Plaintiff commit a crime or violate the law in any way while in custody, nor did Plaintiff resist arrest at any point relevant herein, or otherwise provide justification for the defendant officers' conduct.

23. Nevertheless, Plaintiff was unlawfully subjected to excessive force causing severe and permanent physical and psychological injury.

24. Plaintiff continues to suffer physically and emotionally from the actions of defendant officers described above.

25. Some of the defendant officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

26. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Deprivation of Rights Under the
United States Constitution and 42 U.S.C. § 1983

27. Plaintiff repeats, reiterates, and re-alleges the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

28. By their conduct in intentionally physically harming Plaintiff, failing to intercede on his behalf, and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of the defendant, Detective Viera, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his actions, caused injury and damage in violation of Plaintiff's due process clause and

constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

29. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered profound physical, psychological and emotional injuries and distress, humiliation, costs, expenses, and was otherwise damaged and injured.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

31. The use of excessive force by defendants by, amongst other things, seizing, tightly handcuffing him, grabbing and squeezing his arms with intent to cause pain, slamming his head into a large metal locker causing bleeding and severe injury, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Dereliction of Duty, Depraved/Deliberate Indifference and Failure to Intervene

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

33. The defendants that did not physically touch Plaintiff, but were present when other officers knowingly violated Plaintiff's constitutional rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

34. Defendants failed to intervene to prevent the unlawful conduct described herein.

35. As a result of the foregoing, Plaintiff suffered significant and permanent physical, mental, and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to other physical constraints.

36. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

37. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to severe and permanent physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Substantive and Procedural Due Process

38. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants are individually and collectively liable pursuant to 42 U.S.C. § 1983 for the abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.

40. Defendants are individually and collectively liable for the deprivation of Plaintiff's liberty without due process of law.

41. Defendants are individually and collectively liable for the retaliatory, unreasonable, and unlawful use of force and brutality effectuated against him.

42. Defendants are individually and collectively liable for Plaintiff's "punishment" without due process of law through excessive force and deliberately coercive tactics.

FIFTH CAUSE OF ACTION

Unconstitutional Conditions of Confinement, Deliberate Indifference to Medical Needs, Denial of Medical Attention

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs as if the same were fully set forth at length herein.

44. While imprisoned at the 77th Precinct, under the custody and supervision of the defendant officers, Plaintiff was subjected to grossly excessive force and thereafter, deliberate indifference to Plaintiff's medical needs, denial and/or deferral of medical attention at the hands of the defendant officers under color of law, in violation of his rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

45. As a result of the foregoing, Plaintiff was deprived his liberty, suffered specific physical, psychological and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs as if the same were fully set forth at length herein.

47. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise the defendant officers, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

48. As a result of the aforementioned conduct of the defendants, Plaintiff sustained injuries, including but not limited to serious physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

59. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

60. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

61. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

62. The defendant officers, while in uniform, unlawfully seized and subjected Plaintiff to unfathomable excessive force.

63. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

64. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

65. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

66. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and

to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

67. The defendant officers that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

69. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

119. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

120. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

121. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

122. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

123. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

124. The defendant officers, while in uniform, unlawfully seized and subjected Plaintiff to unfathomable excessive force.

125. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

126. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. The defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

129. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff’s AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

132. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

133. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

134. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

135. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;

- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

136. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

137. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

138. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

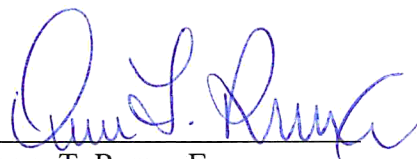
49. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 6, 2023

By:


Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

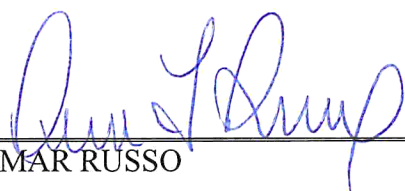
NYPD DETECTIVE ALEX VIERA, 77th Precinct, 127 Utica Avenue, Brooklyn, New York 11213

ATTORNEY'S VERIFICATION

OMAR RUSSO, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 6, 2023


OMAR RUSSO

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

-against-

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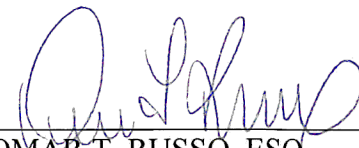
Defendants.

SUMMONS AND VERIFIED COMPLAINT

SHULMAN & HILL, PLLC
Attorneys for the Plaintiff
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Tel: 212-221-1000
www.shulman-hill.com

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 6, 2023


Print Signer's Name: OMAR T. RUSSO, ESQ.

